

M/S Maa Narheji Agro Industries v. State of U.P.

Allahabad High Court · Division Bench · 11 October 2018 · WRIT - C No. 34643 of 2018 · **Writ disposed of; petitioner relegated to CGRF and Ombudsman under clause 7.10.**

HEADNOTE

Where an incorrect electricity bill has already been decided by the Executive Engineer, the consumer's remedy is to challenge that order before the Consumer Grievance Redressal Forum under clause 7.10 of the U.P. Electricity Supply Code, 2005, with a further representation to the Ombudsman. The High Court declined writ jurisdiction and disposed of the petition with liberty to avail those remedies.

FACTUAL SUMMARY

M/S Maa Narheji Agro Industries filed a writ petition against the State of U.P. and another in the Allahabad High Court, alleging an incorrect electricity bill. The Executive Engineer had already considered that grievance and decided it by order dated 15 September 2018. The petitioner sought to challenge that order in writ. Counsel for the petitioner and for respondent no.2 were heard on 11 October 2018.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10

CGRF and Ombudsman as alternate remedy for billing grievances

HOLDING

A consumer whose grievance of an incorrect electricity bill has been decided by the Executive Engineer may challenge that order before the Consumer Grievance Redressal Forum in accordance with clause 7.10 of the U.P. Electricity Supply Code, 2005, with a further remedy of representation before the Ombudsman; the High Court will not exercise writ jurisdiction in the face of that alternate remedy and will dispose of the petition with liberty to avail those forums. ¶ 1

PRINCIPLE TAGS

clause-7.10-forum-ombudsman-route-for-billing-grievances After the Executive Engineer had already decided the incorrect-bill grievance, the writ was not entertained and the consumer was sent to the Forum under clause 7.10, with the Ombudsman as the further Code remedy. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY BILL AND OF THE EXECUTIVE ENGINEER'S ORDER DATED 15.9.2018

Merits left to the CGRF and, thereafter, the Ombudsman. ¶ 1